



Members of Parliament (Staff) Act 1984

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About this compilation

This compilation

This is a compilation of the *Members of Parliament (Staff) Act 1984* that shows the text of the law as amended and in force on 14 March 2026 (the **compilation date**).

The notes at the end of this compilation (the **endnotes**) include information about amending laws and the amendment history of provisions of the compiled law.

Uncommenced amendments

The effect of uncommenced amendments is not shown in the text of the compiled law. The details of amendments made up to, but not commenced at, the compilation date are underlined in the endnotes. Any uncommenced amendments affecting the law are accessible on the Register (www.legislation.gov.au).

Application, saving and transitional provisions

If the operation of a provision or amendment of the compiled law is affected by an application, saving or transitional provision that is not included in this compilation, details are included in the endnotes.

Editorial changes

For more information about any editorial changes made in this compilation, see the endnotes.

Presentational changes

The *Legislation Act 2003* provides for First Parliamentary Counsel to make presentational changes to a compilation. Presentational changes are applied to give a more consistent look and feel to legislation published on the Register, and enable the user to more easily navigate those documents.

Modifications

If the compiled law is modified by another law, the compiled law operates as modified but the modification does not amend the text of the law. Accordingly, this compilation does not show the text of the compiled law as modified. Any modifications affecting the law are accessible on the Register.

Self-repealing provisions

If a provision of the compiled law has been repealed in accordance with a provision of the law, details are included in the endnotes.

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**An Act to provide for the employment of
consultants and staff by Ministers, certain
office-holders, Senators and Members of the House
of Representatives, and for related purposes**

Part I—Preliminary

1 Short title

This Act may be cited as the *Members of Parliament (Staff) Act 1984*.

2 Commencement

- (1) Part I shall come into operation on the day on which this Act receives the Royal Assent.
- (2) The remaining provisions of this Act shall come into operation on such day as is, or such respective days as are, fixed by Proclamation.

2A Objects

The objects of this Act are the following:

- (a) to establish a framework for employing people to assist parliamentarians and office-holders that supports a safe, respectful and accountable workplace;
- (b) to set out certain rights and obligations of employees;
- (c) to set out certain other powers, functions and responsibilities in relation to employment under this Act.

2B Simplified outline of this Act

This Act enables parliamentarians to employ people on behalf of the Commonwealth and deals with certain terms and conditions of employment. All parliamentarians can employ electorate employees. Parliamentarians who occupy certain positions and former Prime Ministers can also employ personal employees.

There are employment principles that set out expectations for the workplace provided to people employed under this Act.

3 Interpretation

In this Act, unless the contrary intention appears:

CEO means the Chief Executive Officer of the Parliamentary Workplace Support Service.

electorate employee means a person employed by a parliamentarian under subsection 11(1).

employing individual: see section 3AA.

Finance Minister means the Minister administering the *Public Governance, Performance and Accountability Act 2013*.

IPSC means the Independent Parliamentary Standards Commission.

office-holder means:

- (a) a person who holds a relevant office; or
- (b) a person, not being a parliamentarian, who held the office of Prime Minister; or
- (c) a parliamentarian in respect of whom a determination under section 4 is in force.

parliamentarian means a senator or a member of the House of Representatives.

personal employee means a personal employee (Ministerial) or a personal employee (non-Ministerial).

personal employee (Ministerial) means a person employed by a Minister under subsection 11(2).

personal employee (non-Ministerial) means a person employed by an office-holder other than a Minister under subsection 11(3).

PWSS means the Parliamentary Workplace Support Service.

relevant office means:

- (a) an office of Minister; or
- (b) the office of Leader of the Opposition in the Senate; or
- (c) the office of Leader of the Opposition in the House of Representatives; or
- (d) the office of Deputy Leader of the Opposition in the Senate; or
- (e) the office of Deputy Leader of the Opposition in the House of Representatives; or
- (f) an office of leader or deputy leader, in a House of the Parliament, of a recognized political party (other than an office that is held by a person who also holds an office referred to in any of the preceding paragraphs of this definition).

workplace means a place where work is carried out by persons employed under this Act and includes any place where an employee goes, or is likely to be, while at work.

3AA Definition of *employing individual*

- (1) The ***employing individual***, for a person employed under this Act, is the parliamentarian or office-holder who, on behalf of the Commonwealth, employed the person under section 11.

Section 3A

- (2) A parliamentarian ceases to be an employing individual if they cease to be a parliamentarian, unless they continue to be an office-holder.
- (3) An office-holder ceases to be an employing individual if they cease to be an office-holder and are not also a parliamentarian.

3A Relationship with Fair Work Acts

- (1) This Act has effect subject to the *Fair Work Act 2009* and the *Fair Work (Transitional Provisions and Consequential Amendments) Act 2009*.
- (2) Subsection (1) is not intended to imply anything about the relationship between this Act and any Act other than the *Fair Work Act 2009* or the *Fair Work (Transitional Provisions and Consequential Amendments) Act 2009*.

4 Determination that parliamentarian may employ personal staff

- (1) The Prime Minister may, in writing, determine that, having regard to the parliamentary duties of a parliamentarian, the parliamentarian may employ personal employees under subsection 11(3).

Note: The determination has the effect of making the parliamentarian an office-holder (see paragraph (c) of the definition of **office-holder** in section 3). Office-holders may employ personal employees (non-Ministerial) under subsection 11(3).

- (2) A determination made under subsection (1) is not a legislative instrument.

Part II—Principles, roles and responsibilities

5 Simplified outline of this Part

This Part sets out employment principles which establish expectations for the workplace in relation to employment under this Act.

This Part also describes roles and responsibilities in relation to employment under this Act.

With one exception (requiring recruitment to be based on capability), a description in this Part does not create a role or responsibility, but is intended to provide an overview of roles and responsibilities created elsewhere in this Act or by other laws.

6 Employment principles

The workplace for people employed under this Act:

- (a) is safe and free from all forms of bullying and harassment;
and
- (b) is free from discrimination and fosters diversity; and
- (c) is one in which decisions relating to employment are based on capability; and
- (d) is one in which parliamentarians, office-holders and employees foster a culture of professionalism and integrity;
and
- (e) requires effective performance from each employee against expectations defined by the parliamentarian or office-holder;
and
- (f) supports the training and professional development of all employees (including those with managerial responsibilities);
and

Section 7

- (g) facilitates consultation with employees about matters that affect the workplace.

7 Roles of parliamentarians, office-holders and Prime Minister under this Act

- (1) This section describes the role of parliamentarians, office-holders and the Prime Minister under this Act.

Parliamentarians and office-holders

- (2) Parliamentarians and office-holders have powers to employ people on behalf of the Commonwealth, to assist them in carrying out their duties (see section 11).
- (3) Parliamentarians and office-holders are responsible for the day-to-day management of their employees. Among other things they:
 - (a) make decisions about who to employ and enter into employment agreements (see section 11); and
 - (b) have powers to terminate or suspend employment or take other employment actions (see sections 16, 18 and 20).

The Prime Minister

- (4) The Prime Minister can:
 - (a) make determinations that affect what kind of employees a parliamentarian may employ (see section 4); and
 - (b) approve arrangements and determine conditions that affect how parliamentarians and office-holders can exercise their powers to employ (including determining how many employees parliamentarians and office-holders may have) (see section 12); and
 - (c) make determinations that vary some terms and conditions of employment (see section 13).

Note: The *Parliamentary Workplace Support Service Act 2023* establishes the PWSS and the IPSC, which also have functions in relation to employment under this Act.

The PWSS:

- (a) provides human resources support to parliamentarians, office-holders and their employees and has functions in the areas of policy development, training, advice, and education; and
- (b) can exercise the powers of an employer in relation to persons employed under this Act in certain circumstances; and
- (c) has some powers to suspend employees.

A Commissioner of the IPSC can, in certain circumstances, recommend that a parliamentarian or office-holder:

- (a) terminate or suspend employees; and
- (b) take other employment actions in relation to employees.

8 Responsibilities of parliamentarians and office-holders

(1) This section:

- (a) describes certain responsibilities of parliamentarians and office-holders under other laws (see subsection (2)); and
- (b) creates a responsibility that parliamentarians and office-holders are required to comply with (see subsection (3)).

Compliance with workplace laws

- (2) Parliamentarians and office-holders have obligations under other Australian laws. Some of the key laws that impose obligations are the following:
- (a) the *Age Discrimination Act 2004*;
 - (b) the *Disability Discrimination Act 1992*;
 - (c) the *Fair Work Act 2009*;
 - (d) the *Racial Discrimination Act 1975*;
 - (e) the *Sex Discrimination Act 1984*;
 - (f) the *Work Health and Safety Act 2011*.

Recruitment to be based on capability

- (3) A parliamentarian or office-holder must, before employing a person to perform a particular role, assess whether the person has the capability to perform the role.

Section 9

9 Responsibilities of employees

- (1) This section describes certain responsibilities of persons employed under this Act.

Compliance with workplace laws

- (2) Employees have obligations under other Australian laws. Some of the key laws that impose obligations are the following:
- (a) the *Age Discrimination Act 2004*;
 - (b) the *Disability Discrimination Act 1992*;
 - (c) the *Fair Work Act 2009*;
 - (d) the *Racial Discrimination Act 1975*;
 - (e) the *Sex Discrimination Act 1984*;
 - (f) the *Work Health and Safety Act 2011*.

Authorisations

- (3) When exercising a function or power under an authorisation, employees must comply with any directions given by the person authorising the exercise of the function or power.

Note: See section 31 (powers may be exercised by authorised person).

Part III—Employment arrangements

10 Simplified outline of this Part

Parliamentarians and office-holders can employ people to assist them to carry out their duties.

Parliamentarians and office-holders can suspend and terminate the employment of their employees, and in certain circumstances the termination of employment is automatic. Parliamentarians and office-holders have obligations to inform and consult the PWSS in relation to decisions to suspend or terminate employment.

Parliamentarians and office-holders are also required to take certain employment actions in relation to their employees, including termination of employment, on the recommendation of a Commissioner of the IPSC.

In certain circumstances, the CEO of the PWSS can suspend employees and, where a parliamentarian or office-holder dies or ceases to be a parliamentarian, can step in to exercise most of the powers of an employer.

The power to employ, and the terms and conditions of employment, may be affected by arrangements and determinations made by the Prime Minister under this Part.

11 Employment of electorate employees and personal employees

Electorate employees

- (1) A parliamentarian may, on behalf of the Commonwealth, employ a person, under a written agreement, as an electorate employee.

Note: The power to employ a person under this subsection is subject to section 12.

Section 12

Personal employees (Ministerial)

- (2) A Minister may, on behalf of the Commonwealth, employ a person, under a written agreement, as a personal employee (Ministerial).

Note 1: The power to employ a person under this subsection is subject to section 12.

Note 2: A person who is both a Minister and a parliamentarian may employ persons under both subsections (1) and (2).

Personal employees (non-Ministerial)

- (3) An office-holder other than a Minister may, on behalf of the Commonwealth, employ a person, under a written agreement, as a personal employee (non-Ministerial).

Note 1: The power to employ a person under this subsection is subject to section 12.

Note 2: A person who is both an office-holder other than a Minister and a parliamentarian may employ persons under both subsections (1) and (3).

12 Arrangements and conditions affecting power to employ under section 11

- (1) A power to employ a person under section 11 must be exercised:
- (a) in accordance with any arrangements approved under paragraph (2)(a) of this section; and
 - (b) subject to any conditions determined under paragraph (2)(b) of this section;
- that apply to the parliamentarian or office-holder, and to the power.
- (2) The Prime Minister may, in writing, do either or both of the following:
- (a) approve arrangements in accordance with which a parliamentarian or office-holder is to exercise a power under section 11;
 - (b) determine conditions subject to which a parliamentarian or office-holder is to exercise a power under section 11.

- (3) An instrument made under subsection (2) is not a legislative instrument.

13 Terms and conditions of employment

Terms and conditions

- (1) The terms and conditions of employment for a person employed under this Act include the terms and conditions set out in:
- (a) the agreement under which the person is employed; and
 - (b) any fair work instruments (within the meaning of the *Fair Work Act 2009*) that apply to the person; and
 - (c) any determination made under subsection (2) or (3) that applies to the person.

Note: This Act has effect subject to the *Fair Work Act 2009*: see section 3A of this Act.

Variation of terms and conditions for all or a class of employees

- (2) The Prime Minister may, by notifiable instrument, determine that the terms and conditions of employment of either of the following (as specified in the instrument) are varied in accordance with the determination:
- (a) all persons employed under this Act;
 - (b) all persons included in a specified class or classes of persons employed under this Act.

Variation of terms and conditions for individual employees

- (3) The Prime Minister may, in writing, determine that the terms and conditions of employment of a specified person employed under this Act are varied in accordance with the determination.

Other matters affecting determinations

- (4) Subsections (2) and (3) do not authorise the making of a determination that varies a matter expressly provided for by section 14, 16 or 17 (termination of employment), 18 or 19

Section 14

(suspension from duties) or 20 (employment actions following IPSC recommendation).

- (5) A determination may vary terms and conditions by varying specified terms and conditions or by including new terms and conditions.
- (6) A determination that applies to a person prevails over the agreement under which the person is employed, to the extent of any inconsistency.

14 Automatic termination of employment

- (1) A person's employment under this Act terminates if an event specified in the table occurs and the person is the kind of employee specified for the event.

Events that terminate employment		
Item	Event	Kind of employees whose employment terminates
1	The employing individual dies	Electorate employees and personal employees
2	The employing individual ceases to be a parliamentarian	Electorate employees and personal employees
3	The employing individual ceases to hold a relevant office and on the same day: (a) starts to hold another relevant office; or (b) starts to be covered by a determination made under section 4	Personal employees
4	The employing individual ceases to hold a relevant office and does not do one of the following on the same day: (a) start to hold another relevant office; (b) start to be covered by a determination made under section 4	Electorate employees and personal employees
5	The employing individual ceases to be covered by a determination made under	Personal employees

Section 14

Events that terminate employment

Item	Event	Kind of employees whose employment terminates
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section 4 (whether or not the employing individual starts to be covered on the same day by another such determination)

Note 1: The employing individual is the parliamentary or office-holder who employed the person on behalf of the Commonwealth (see the definition of *employing individual* in section 3).

Note 2: The effect of this subsection may be altered by a direction under section 15.

(2) For the purposes of table item 2 in subsection (1), a person is taken not to have ceased to be a parliamentary at any time while remuneration is to be paid to the person in accordance with section 49 of the *Parliamentary Business Resources Act 2017*.

(3) For the purposes of table items 3 and 4 in subsection (1), a person ceases to hold the office of Minister at the time the person ceases to be appointed to administer any Departments (even if the person is immediately after that time appointed to administer one or more Departments).

Example: If a person is appointed to administer 2 Departments and then ceases to be appointed to administer one of those Departments, the person will not cease to hold the office of Minister. However, if the person ceases to be appointed to administer both Departments, the person ceases to be a Minister even if the person is immediately appointed to administer another Department.

(4) For the purposes of the table in subsection (1), the Prime Minister may, by legislative instrument, determine any of the following:

- (a) circumstances, not inconsistent with subsection (2), in which an event specified in table item 2 is taken to occur, or taken not to occur;
- (b) circumstances, not inconsistent with subsection (3), in which an event specified in table item 3 or 4 is taken to occur, or taken not to occur.

Subsection (1) has effect in accordance with the determination.

Section 15

- (5) If more than one event specified in the table in subsection (1) occurs at the same time, the event listed first in the table is the only event that is taken to have occurred.

15 Directions in relation to automatic termination

Direction in relation to class of persons

- (1) The Prime Minister may, by legislative instrument, direct that the employment of the persons included in a specified class or classes of persons, whose employment would, but for this subsection, be terminated by subsection 14(1), is taken:
- (a) not to have been terminated; and
 - (b) to continue, or to have continued, until a specified date.

Direction in relation to specified person

- (2) The Prime Minister may, in writing, direct that the employment of a specified person whose employment would, but for this subsection, be terminated by subsection 14(1), is taken:
- (a) not to have been terminated; and
 - (b) to continue, or to have continued, until a specified date.
- (3) A direction made under subsection (2) is not a legislative instrument.

Effect of direction

- (4) If the Prime Minister gives a direction under subsection (1) or (2), then, despite subsection 14(1), the employment of the persons included in the specified class or classes, or the employment of the specified person, is taken for all purposes to continue, or to have continued, until the specified date.

CEO to act as employer

- (5) If:

- (a) because of a direction given by the Prime Minister under subsection (1) or (2), a person's employment is taken to continue until a specified date; and
 - (b) but for this section, the person's employment would have terminated because of table item 1 or 2 in subsection 14(1) (the employing individual dies or ceases to be a parliamentarian);
- the CEO may exercise the powers of an employer in relation to the person at any time in the period starting when the person's employment would have terminated and ending at the end of the specified date.
- (6) Subject to subsection 20(3) (about employment actions following an IPSC recommendation), the powers referred to in subsection (5) do not include the power to terminate the person's employment.

16 Termination by notice

- (1) The employing individual for a person employed under this Act may at any time, by notice in writing given to the person, terminate the person's employment.

Note 1: The employing individual is the parliamentarian or office-holder who employed the person on behalf of the Commonwealth (see the definition of *employing individual* in section 3).

Note 2: The employing individual must first consult the PWSS (see subsection (3)).

- (2) The notice must specify the ground or grounds that are relied on for the termination.

Note 1: The *Fair Work Act 2009* has rules and entitlements that apply to termination of employment. See, for example, Parts 3-1 (general protections) and 3-2 (unfair dismissal) of that Act.

Note 2: Additional rules or procedures to be followed in terminating the employment of a person may be set out in:

- (a) the agreement for the employment of the person; or
- (b) fair work instruments (within the meaning of the *Fair Work Act 2009*); or
- (c) arrangements approved or determinations made under section 12 or subsection 13(2) or (3) of this Act.

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Note 3: Termination of employment may be unlawful under anti-discrimination laws in certain circumstances.

- (3) Before terminating a person's employment under subsection (1), the employing individual must consult, and have regard to any advice provided by, the PWSS.

Note: If an employing individual fails to consult with the PWSS, the CEO may include details about the failure in a public report.

- (4) A failure to consult with, or to have regard to advice provided by, the PWSS as required by subsection (3) does not affect the validity of the termination of the person's employment.

17 Resignation

A person employed under this Act may terminate the person's employment at any time by giving written notice to:

- (a) if paragraph (b) does not apply—the employing individual; or
- (b) if the CEO is exercising the powers of an employer under subsection 15(5) in relation to the person—the CEO.

Note: The employing individual is the parliamentarian or office-holder who employed the person on behalf of the Commonwealth (see the definition of *employing individual* in section 3).

18 Suspension from duties

Suspension

- (1) The employing individual for a person employed under this Act may suspend the person from duties if the employing individual considers that it is appropriate to do so.

Note 1: The employing individual is the parliamentarian or office-holder who employed the person on behalf of the Commonwealth (see the definition of *employing individual* in section 3).

Note 2: The *Fair Work Act 2009* may limit the circumstances in which an employing individual may lawfully suspend a person from duties. See, for example, Part 3-1 (general protections) of that Act.

Note 3: Additional rules or procedures to be followed in suspending a person from duties may be set out in:

- (a) the agreement for the employment of the person; or
- (b) fair work instruments (within the meaning of the *Fair Work Act 2009*); or
- (c) arrangements approved or determinations made under section 12 or subsection 13(2) or (3) of this Act.

Note 4: Suspension of employment may be unlawful under anti-discrimination laws in certain circumstances.

Period of suspension

- (2) The suspension is for the period determined by the employing individual, which must not exceed 30 days.
- (3) Subsection (2) does not prevent:
 - (a) the employing individual from suspending the person again under subsection (1); or
 - (b) the CEO from suspending the person under section 19.

With pay unless exceptional circumstances

- (4) The suspension is with pay, unless the employing individual is satisfied that exceptional circumstances exist to justify suspension without pay.
- (4A) Before deciding to suspend without pay, the employing individual must consult the PWSS about whether exceptional circumstances exist.

Obligation to inform PWSS of suspension

- (4B) The employing individual must inform the PWSS before, or as soon as practicable after, suspending a person from duties.

End of suspension

- (5) The employing individual may end the suspension at any time before the end of the period determined under subsection (2). The employing individual must inform the PWSS if the employing individual does so.

19 Suspension from duties by CEO

Suspension

- (1) The CEO may suspend a person employed under this Act from duties if:
- (a) the CEO has informed the employing individual of the CEO's concern that it might be appropriate to suspend the person, in order to mitigate a risk to:
 - (i) work health and safety; or
 - (ii) property; or
 - (iii) security; or
 - (iv) an investigation; and
 - (b) the CEO has sought the employing individual's views about the CEO's concern; and
 - (c) taking into account any views the employing individual expressed and any other action the employing individual has taken in relation to the concern, the CEO considers that it is appropriate to suspend the person from duties in order to mitigate a risk mentioned in paragraph (a); and
 - (d) the employing individual agrees to the CEO suspending the person from duties.

Note 1: The employing individual is the parliamentary or office-holder who employed the person on behalf of the Commonwealth (see the definition of ***employing individual*** in section 3).

Note 2: The *Fair Work Act 2009* may limit the circumstances in which the CEO may lawfully suspend a person from duties. See, for example, Part 3-1 (general protections) of that Act.

Note 3: Additional rules or procedures to be followed in suspending a person from duties may be set out in:

- (a) the agreement for the employment of the person; or
- (b) fair work instruments (within the meaning of the *Fair Work Act 2009*); or
- (c) arrangements approved or determinations made under section 12 or subsection 13(2) or (3) of this Act.

Note 4: Suspension of employment may be unlawful under anti-discrimination laws in certain circumstances.

Period of suspension

- (2) The suspension is for the period determined by the CEO, which must not exceed 30 days.
- (3) Subsection (2) does not prevent:
 - (a) the CEO from suspending the person again under subsection (1); or
 - (b) the employing individual from suspending the person under section 18.

With pay unless exceptional circumstances

- (4) The suspension is with pay, unless the CEO is satisfied that exceptional circumstances exist to justify suspension without pay.

End of suspension

- (5) The CEO may end the suspension at any time before the end of the period determined under subsection (2).

20 Employment actions following IPSC recommendation

- (1) This section applies if, under the *Parliamentary Workplace Support Service Act 2023*:
 - (a) a Commissioner of the IPSC decides to recommend that the employing individual for a person employed under this Act take any of the following actions in relation to the person:
 - (i) give the person a written reprimand;
 - (ii) require the person to undertake training or professional development;
 - (iii) require the person to enter into an agreement with the employing individual about the person's future behaviour;
 - (iv) re-assign the person's duties;
 - (v) deduct from the person's annual salary, by way of fine, an amount not exceeding 2% of that salary;
 - (vi) terminate the person's employment; and

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- (b) the decision is in operation.
- (2) The action must be taken by:
 - (a) if paragraph (b) does not apply—the employing individual;
or
 - (b) if the CEO is exercising the powers of an employer under subsection 15(5) in relation to the person—the CEO.
- Note 1: The employing individual is the parliamentarian or office-holder who employed the person on behalf of the Commonwealth (see the definition of *employing individual* in section 3).
- Note 2: Additional rules or procedures to be followed in taking these actions may be set out in:
 - (a) the agreement for the employment of the person; or
 - (b) fair work instruments (within the meaning of the *Fair Work Act 2009*); or
 - (c) arrangements approved or determinations made under section 12 or subsection 13(2) or (3) of this Act.
- (3) Subsection 15(6) (CEO may not exercise power to terminate) does not apply if:
 - (a) the action is to terminate the person's employment; and
 - (b) the action must be taken by the CEO because of paragraph (2)(b) of this section.
- (4) To avoid doubt, if the action is to terminate the person's employment, section 16 (termination by notice) does not apply in relation to the termination.
- (5) The employing individual or the CEO must inform the IPSC as soon as practicable after taking an action under subsection (2).
- (6) This section does not limit the actions that an employing individual for a person employed under this Act or the CEO may take in relation to the person's employment.

Part VI—Miscellaneous

28 Simplified outline of this Part

This Part deals with miscellaneous matters, such as delegations, regulations, and review of the Act.

29 Delegation by CEO

- (1) The CEO may, in writing, delegate the CEO's powers under the following provisions to a member of the staff of the PWSS who is an SES employee or an acting SES employee:
 - (a) subsection 15(5) (CEO to act as employer);
 - (b) section 19 (suspension from duties by CEO).

Note: Sections 34AA to 34A of the *Acts Interpretation Act 1901* contain provisions relating to delegations.

- (2) In performing a delegated function or exercising a delegated power, the delegate must comply with any written directions of the CEO.

30 Delegation by Prime Minister

- (1) The Prime Minister may, in writing, delegate all or any of the Prime Minister's functions or powers under this Act to:
 - (a) any Minister; or
 - (b) an SES employee, or an acting SES employee, in either of the following:
 - (i) the Department administered by the Prime Minister;
 - (ii) the Department administered by the Minister; or
 - (c) a member of the staff of the PWSS who is an SES employee or an acting SES employee.

Note: Sections 34AA to 34A of the *Acts Interpretation Act 1901* contain provisions relating to delegations.

Section 31

- (2) In performing a delegated function or exercising a delegated power, the delegate must comply with any written directions of the Prime Minister.
- (3) To avoid doubt, subsection (1) does not apply in relation to functions or powers conferred on the Prime Minister merely in the capacity of parliamentarian or office-holder.

31 Powers may be exercised by authorised person

- (1) A parliamentarian or office-holder (the *authoriser*) may, in writing, authorise another person to exercise, on the authoriser's behalf, all or any of the authoriser's functions or powers under this Act, if the authoriser is satisfied it is appropriate for the person to perform such functions or exercise such powers.
- (2) In performing the function or exercising the power, the authorised person must comply with any directions of the authoriser.

32 Review of operation of this Act

- (1) The Minister must cause a review of the operation of this Act to be conducted as soon as practicable after 22 March 2026.
- (2) The persons undertaking the review must give the Minister a written report of the review.
- (3) The Minister must cause a copy of the report to be tabled in each House of the Parliament within 15 sitting days of that House after the day on which the report is given to the Minister.

33 Regulations

The Governor-General may make regulations, not inconsistent with this Act, prescribing matters:

- (a) required or permitted by this Act to be prescribed; or
- (b) necessary or convenient to be prescribed for carrying out or giving effect to this Act.

Endnotes

Endnote 1—About the endnotes

The endnotes provide information about this compilation and the compiled law.

The following endnotes are included in every compilation:

Endnote 1—About the endnotes

Endnote 2—Abbreviation key

Endnote 3—Legislation history

Endnote 4—Amendment history

Abbreviation key—Endnote 2

The abbreviation key sets out abbreviations that may be used in the endnotes.

Legislation history and amendment history—Endnotes 3 and 4

Amending laws are annotated in the legislation history and amendment history.

The legislation history in endnote 3 provides information about each law that has amended (or will amend) the compiled law. The information includes commencement details for amending laws and details of any application, saving or transitional provisions that are not included in this compilation.

The amendment history in endnote 4 provides information about amendments at the provision (generally section or equivalent) level. It also includes information about any provision of the compiled law that has been repealed in accordance with a provision of the law.

Editorial changes

The *Legislation Act 2003* authorises First Parliamentary Counsel to make editorial and presentational changes to a compiled law in preparing a compilation of the law for registration. The changes must not change the effect of the law. Editorial changes take effect from the compilation registration date.

If the compilation includes editorial changes, the endnotes include a brief outline of the changes in general terms. Full details of any changes can be obtained from the Office of Parliamentary Counsel.

Misdescribed amendments

A misdescribed amendment is an amendment that does not accurately describe how an amendment is to be made. If, despite the misdescription, the amendment

Endnotes

Endnote 1—About the endnotes

can be given effect as intended, then the misdescribed amendment can be incorporated through an editorial change made under section 15V of the *Legislation Act 2003*.

If a misdescribed amendment cannot be given effect as intended, the amendment is not incorporated and “(md not incorp)” is added to the amendment history.

Endnote 2—Abbreviation key

Endnote 2—Abbreviation key

ad = added or inserted	orig = original
am = amended	p = page(s)
amdt = amendment	para = paragraph(s)/subparagraph(s) /sub-subparagraph(s)
C[x] = Compilation No. x	pres = present
ch = Chapter(s)	prev = previous
cl = clause(s)	(prev...) = previously
cont. = continued	pt = Part(s)
def = definition(s)	r = regulation(s)/Court rule(s)
Dict = Dictionary	reloc = relocated
disallowed = disallowed by Parliament	renum = renumbered
div = Division(s)	rep = repealed
ed = editorial change	rs = repealed and substituted
exp = expires/expired or ceases/ceased to have effect	s = section(s)/subsection(s) /rule(s)/subrule(s)/order(s)/suborder(s)
gaz = gazette	sch = Schedule(s)
LA = <i>Legislation Act 2003</i>	SLI = Select Legislative Instrument
LIA = <i>Legislative Instruments Act 2003</i>	SR = Statutory Rules
(md) = misdescribed amendment can be given effect	sub ch = Sub-Chapter(s)
(md not incorp) = misdescribed amendment cannot be given effect	sub div = Subdivision(s)
mod = modified/modification	sub pt = Subpart(s)
No. = Number(s)	<u>underlining</u> = whole or part not commenced or to be commenced
Ord = Ordinance	

Endnotes

Endnote 3—Legislation history

Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
Members of Parliament (Staff) Act 1984	64, 1984	25 June 1984	ss. 4-11, 31 and 33: 20 July 1984 (<i>Gazette</i> 1984, No. S276) ss. 12-30: 1 Sept 1984 (<i>Gazette</i> 1984, No. S343) s. 32: 1 July 1985 (<i>see Gazette</i> 1985, No. S221) Remainder: Royal Assent	
Public Service Reform Act 1984	63, 1984	25 June 1984	s 145-148, 159(6): 1 Jan 1986 (s 2(4) and gaz 1985, No S563) s 152(3)-(5): repealed on commencement (s 2(4) and gaz 1985, No S221)	s 159(6)
as amended by				
Statute Law (Miscellaneous Provisions) Act (No. 2) 1984	165, 1984	25 Oct 1984	s 6(1) and sch 1 (amds to Public Service Reform Act 1984): 1 July 1985 (s 2(21), (32))	s 6(1)
Statute Law (Miscellaneous Provisions) Act (No. 2) 1984	165, 1984	25 Oct 1984	s 2, 6 and sch 1: 1 July 1985 (s 2(12))	s 2, 6
Statute Law (Miscellaneous Provisions) Act (No. 2) 1985	193, 1985	16 Dec 1985	s 11, 16 and sch 1: 16 Dec 1985 (s 2(1))	s 11, 16

Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
Public Service Legislation (Streamlining) Act 1986	153, 1986	18 Dec 1986	s 1-3, 103, 126, 130, 132 and 134: 18 Dec 1986 s 20, 22(2), 36, 38-41, 44, 45(1) and (3), 46, 102, 105, 110 and 112: 14 June 1987 (<i>Gazette</i> 1987, No. S125) s 43, 45(2), 70-76, 78, 87, 113, 115, 116, 122(2), 123, 125, 129 and 131: 20 July 1987 (<i>Gazette</i> 1987, No. S178) Remainder: 15 Jan 1987	—
Superannuation Legislation (Consequential Amendments and Transitional Provisions) Act 1992	94, 1992	30 June 1992	s 6: 30 June 1992 (s 2(1)) sch: 1 July 1990 (s 2(2))	s 6
Public Employment (Consequential and Transitional) Amendment Act 1999	146, 1999	11 Nov 1999	sch 1 (items 587-605): 5 Dec 1999 (s 2(2))	—
as amended by				
Statute Law Revision Act 2002	63, 2002	3 July 2002	sch 2 (items 25, 26): 5 Dec 1999 (s 2(1) items 54, 55)	—
Statute Law Revision Act 2011	5, 2011	22 Mar 2011	sch 5 (items 123, 124): 19 Apr 2011 (s 2(1) item 13)	—
Public Governance, Performance and Accountability (Consequential and Transitional Provisions) Act 2014	62, 2014	30 June 2014	sch 10 (item 7) and sch 14 (items 1-4): 1 July 2014 (s 2(1) items 6, 14)	sch 14 (items 1-4)

Endnotes

Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
as amended by				
Public Governance and Resources Legislation Amendment Act (No. 1) 2015	36, 2015	13 Apr 2015	sch 2 (item 7): 14 Apr 2015 (s 2)	—
Act (Register ID)	Number and year	Assent	Commencement	Application, saving and transitional provisions
Parliamentary Workplace Reform (Set the Standard Measures No. 1) Act 2022 (C2022A00007)	7, 2022	22 Feb 2022	sch 1: 23 Feb 2022 (s 2(1) item 1)	—
Members of Parliament (Staff) Amendment Act 2023 (C2023A00071)	71, 2023	19 Sept 2023	sch 1-3: 17 Oct 2023 (s 2(1) items 2-4)	sch 3
Parliamentary Workplace Support Service Amendment (Independent Parliamentary Standards Commission) Act 2024 (C2024A00086)	86, 2024	17 Sept 2024	sch 1 (items 7-13): 14 Oct 2024 (s 2(1) item 3)	—
Parliamentary Frameworks Legislation Amendment (Reviews) Act 2026 (C2026A00011)	11, 2026	13 March 2026	sch 1 (item 1): 14 March 2026 (s 2(1) item 1)	—

Endnote 3—Legislation history

Number and year	Registration or gazettal	Commencement	Application, saving and transitional provisions
301, 1999	27 Mar 2006 (F2006C00143)	05 Dec 1999	—
as amended by			
332, 2000	1 Jan 2005 (F2000B00356)	r 1–3 and Sch 1: 5 Dec 1999 (p 2(a)) Sch 2: 23 Dec 1999 (p 2(b)) Sch 3: 13 March 2000 (p 2(c))	—

Endnotes

Endnote 4—Amendment history

Endnote 4—Amendment history

Provision affected	How affected
Part I	
s 2A.....	ad No 71, 2023
s 2B.....	ad No 71, 2023
s 3.....	am No 63, 1984; No 153, 1986; No 94, 1992; No 146, 1999; SR No 301, 1999 (as am by SR 332, 2000); No 5, 2011; No 62, 2014; No 71, 2023; No 86, 2024
s 3AA.....	ad No 71, 2023
s 3A.....	ad No 7, 2022
s 4.....	ad No 71, 2023
Part II	
Part II.....	rs No 71, 2023
s 4.....	rep No 71, 2023
s 5.....	am No 146, 1999 rs No 71, 2023
s 6.....	rs No 71, 2023
s 7.....	rs No 71, 2023 am No 71, 2023; No 86, 2024
s 8.....	am No 94, 1992; No 5, 2011 rs No 71, 2023
s 9.....	rs No 71, 2023
Part III	
Part III.....	rs No 71, 2023
s 10.....	rep No 146, 1999 ad No 71, 2023 am No 71, 2023; No 86, 2024
s 11.....	am No 63, 1984 (as am by No 165, 1984) rep No 146, 1999 ad No 71, 2023
s 12.....	rs No 71, 2023

Endnote 4—Amendment history

Provision affected	How affected
s 13.....	rs No 71, 2023 am No 71, 2023; No 86, 2024
s 14.....	am No. 146, 1999; SR No 301, 1999 (as am by SR No 332, 2000) rs No 71, 2023
s 15.....	am No 94, 1992; No 5, 2011 rs No 71, 2023 am No 71, 2023; No 86, 2024
s 16.....	am No 193, 1985; No 7, 2022 rs No 71, 2023 am No 71, 2023
s 17.....	am No 63, 1984 rep No 146, 1999 ad No 71, 2023 rs No 71, 2023
s 18.....	am No 63, 1984 (as am by No 165, 1984) rep No 146, 1999 ad No 71, 2023 am No 71, 2023
s 19.....	rs No 71, 2023
s 20.....	ad No 86, 2024
Part IV.....	rep No 71, 2023
s 20.....	rep No 71, 2023
s 21.....	am No 146, 1999; SR No 301. 1999 (as am by SR No 332, 2000) rep No 71, 2023
s 22.....	am No 94, 1992; No 5, 2011 rep No 71, 2023
s 23.....	am No 193, 1985; No 7, 2022 rep No 71, 2023
s 24.....	am No 63, 1984 rep No 146, 1999
s 25.....	am No 63, 1984 (as am by No 165, 1984)

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
	rep No 146, 1999
Part V.....	rep No 63, 1984
s 26.....	rep No 63, 1984
s 27.....	rep No 63, 1984
Part VI	
s 28.....	rep No 63, 1984
	ad No 71, 2023
s 29.....	rep No 63, 1984
	ad No 71, 2023
s 30.....	rep No 63, 1984
	ad No 71, 2023
	am No 71, 2023
s 31.....	rs No 71, 2023
s 32.....	rep No 165, 1984
	ad No 153, 1986
	rs No 71, 2023
	am No 11, 2026